NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-II)

C.A.(CAA)122/ND/2020

IN THE MATTER OF SCHEME OF AMALGAMATION :

Between

Newwave Commercial Private Limited
B-19/1, Shyam Vihar, Phase-II, Near Mata Mandir,
Gola Dairy Road, Najafgarh, New Delhi-110043

....Applicant Company No.1/Transferor Company

With

P.R. Kumar Capital Private Limited
C-2/4, Safdarjung Development Area,
New Delhi-110016

....Applicant Company No.2/Transferee Company

Order Delivered on 18.01.2021

Section: 230 to 232 of the Companies Act, 2013

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SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (J)

SH. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT

For Applicants : PCS Rekha Mittal

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Company Application No. C.A.(CAA)122/ND/2020 preferred jointly by both the Transferor and Transferee Companies (hereinafter called **'the Applicant Companies'**) under Sections 230 to 232 of the Companies Act, 2013. That the Registered offices of the Applicant Companies are in Delhi and therefore, the jurisdiction lies with this Bench. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies.

2. That Newwave Commercial Private Limited (hereinafter referred as the "Transferor Company") having CIN no. U51109DL2005PTC274734 is a private limited company incorporated under the Companies Act, 1956, on 15.07.2005. The registered office of the Transferor Company no.1 is situated at B-19/1, Shyam Vihar, Phase-II, Near Mata Mandir, Gola Dairy Road, Najafgarh, New Delhi-110043.

3. That P.R Kumar Capital Private Limited (hereinafter referred as the "Transferee Company") having CIN no. U74899DL1985PTC022120 is a company incorporated under the Companies Act 1956, on 27.09.1985 The registered office of the Transferee Company No. 2 is situated at C-2/4, Safdarjung Development Area, New Delhi-110016.

4. It is seen that the Board of Directors of both the Applicant Companies vide separate meetings held on 16.03.2020 had approved the proposed Scheme of Amalgamation (hereinafter called **'the Scheme'**).

5. It is submitted by the Applicant Companies that the Transferor and Transferee Companies are closely held group companies under common shareholding, management and control. The proposed amalgamation of the Applicant companies will have the following benefits :

a) The proposed amalgamation would enable pooling of physical, financial and human resource of these companies for the most beneficial utilization of these factors in the combined entity. Post Scheme, the Transferee Company will enjoy large net worth and financial resources.

b) The proposed Scheme of Amalgamation will result in usual economies of a centralized and a large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of financial, human and other resource and enhancement of overall business efficiency. The proposed Scheme will enable these Companies to combine their managerial and operating strength, to build a wider capital and financial base and to promote and secure overall growth of their businesses.

c) The said Scheme of Amalgamation will contribute in fulfilling and furthering the objects of these Companies. It will strengthen, consolidate and stabilize the business of these Companies and will facilitate further expansion and growth of their business. The resulting amalgamated company will be able to participate more vigorously and profitably in the competitive market scenario.

6. That both the Companies have averred in its Application that the Applicant Companies are not under any investigation under Companies Act 2013.

7. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors, conforming that their Accounting standards are in conformity with the provisions of Section 133 of the Companies Act 2013.

8. That the Applicant Companies have filed their respective Memorandum of Association (MoA) and Articles of Association (AoA). The Applicant Companies have filed their Audited Annual Accounts and Balance Sheets as on 31.03.2019.

9. That the position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf:

Company	No. of Share holders	Percentage of Shareholders given Consent (in value)	No. of Secured and Unsecured Creditors	Percentage of Secured and and Unsecured Creditors given Consent(in value)
Newwave Commercial Private Limited Applicant No.1 Company/ Transferor	3	100%	Nil	Not Applicable
P.R. Kumar Capital Private Limited Applicant No.2/ Transferee Company	3	100%	Nil	Not Applicable

10. That all the Shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of both the Applicant Companies is dispensed with.

11. Since there are no Secured and Unsecured Creditors in any of the Applicants Companies, the requirement of convening their meetings does not arise.

12. **The Company Application is allowed** in the aforesaid terms.

Sd/-

(L. N. GUPTA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)